

HOUSE BILL 2534

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 60;
Title 68 and Title 69, relative to contested cases.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 60-1-401(h), is amended by deleting the subsection and substituting:

(h) If the operator files an appeal of the citation or assessment of a penalty as provided under subsection (g), then the proceedings on appeal must be conducted as a contested case and must be heard before an administrative judge sitting alone pursuant to § 4-5-301(a)(2), unless settled by the parties. The administrative judge to whom the case is assigned shall convene the parties for a scheduling conference within thirty (30) days of the date on which the appeal was filed. The scheduling order issued by the administrative judge must establish a schedule that results in a hearing being completed within one hundred eighty (180) days of the scheduling conference unless the parties agree to a longer time or the administrative judge allows otherwise for good cause shown. An initial order must be issued by the administrative judge within ninety (90) days of completion of the record of the hearing. The administrative judge's initial order, together with any earlier orders issued by the administrative judge, is final unless a party files a petition for appeal pursuant to § 4-5-315 within fifteen (15) days after entry of the initial order. The board shall not review an initial order unless appealed by a party. Upon appeal to the board by a party, the board shall provide each party an opportunity to present briefs, and shall review the record and allow each party an opportunity to present oral argument. If appealed to the board, the review of the administrative judge's initial order must be limited to the record, but must be a de novo review with no

presumption of correctness. The board shall render a final order at the conclusion of its review in accordance with § 4-5-314, affirming, modifying, remanding, or vacating the supervisor's citation or assessment of a penalty. A final order rendered under this section is effective upon its entry, except as provided in § 4-5-320(b), unless a later effective date is stated in the order. A petition to stay the effective date of a final order may be filed under § 4-5-316. A petition for reconsideration of a final order may be filed pursuant to § 4-5-317. Judicial review of a final order may be sought by filing a petition for review in accordance with § 4-5-322. An order of an administrative judge that becomes final in the absence of an appeal to the board is deemed to be a decision of the board in that case for purposes of the standard of review by a court; provided, however, that in other matters before the board, it may be considered but is not binding on the board.

SECTION 2. Tennessee Code Annotated, Section 68-201-108(a)(1), is amended by deleting the subdivision and substituting:

(1) Except as provided in subdivision (a)(2), a person aggrieved by a final action of the technical secretary on a permit, order, or assessment may request a hearing before the board under this section by filing a petition with the technical secretary within thirty (30) days of issuance of the permit or service of the order or assessment. The hearing must be conducted as a contested case and must be heard before an administrative judge sitting alone pursuant to § 4-5-301(a)(2), unless settled by the parties. The administrative judge to whom the case is assigned shall convene the parties for a scheduling conference within thirty (30) days of the date on which the petition was filed. The scheduling order issued by the administrative judge must establish a schedule that results in a hearing being completed within one hundred eighty (180) days of the scheduling conference unless the parties agree to a longer time or the

administrative judge allows otherwise for good cause shown. An initial order must be issued by the administrative judge within ninety (90) days of completion of the record of the hearing. The administrative judge's initial order, together with any earlier orders issued by the administrative judge, is final unless a party appeals the initial order to the board pursuant to § 4-5-315 within fifteen (15) days after entry of the order. The board shall not review an initial order unless appealed by a party. Upon appeal to the board by a party, the board shall provide each party an opportunity to present briefs, and shall review the record and allow each party an opportunity to present oral argument. If appealed to the board, the review of the administrative judge's initial order is limited to the record, but must be a de novo review with no presumption of correctness. The board shall render a final order at the conclusion of its review, in accordance with § 4-5-314, affirming, modifying, remanding, or vacating the administrative judge's order. A final order rendered pursuant to this section is effective upon its entry, except as provided in § 4-5-320(b) unless a later effective date is stated in the order. A petition to stay the effective date of a final order may be filed under § 4-5-316. A petition for reconsideration of a final order may be filed pursuant to § 4-5-317. Judicial review of a final order may be sought by filing a petition for review in accordance with § 4-5-322. An order of an administrative judge that becomes final in the absence of an appeal to the board is deemed to be a decision of the board in that case for purposes of the standard of review by a court; provided, however, that in other matters before the board, it may be considered but is not binding on the board.

SECTION 3. Tennessee Code Annotated, Section 68-211-113(b), is amended by deleting the subsection and substituting:

(b) The hearing before the board on any petition filed under subsection (a) must be conducted as a contested case and must be heard before an administrative judge

sitting alone pursuant to § 4-5-301(a)(2), unless settled by the parties. The administrative judge to whom the case is assigned shall convene the parties for a scheduling conference within thirty (30) days of the date on which the petition was filed. The scheduling order issued by the administrative judge must establish a schedule that results in a hearing being completed within one hundred eighty (180) days of the scheduling conference unless the parties agree to a longer time or the administrative judge allows otherwise for good cause shown. An initial order must be issued within ninety (90) days of completion of the record of the hearing. The administrative judge's initial order, together with any earlier orders issued by the administrative judge, is final unless appealed to the board by a party pursuant to § 4-5-315 within fifteen (15) days after entry of the initial order. The board shall not review an initial order unless appealed by a party. Upon appeal to the board by a party, the board shall afford each party an opportunity to present briefs, and shall review the record and allow each party an opportunity to present oral argument. If appealed to the board, the review of the administrative judge's initial order must be limited to the record, but must be a de novo review with no presumption of correctness. The board shall render a final order at the conclusion of its review, in accordance with § 4-5-314, affirming, modifying, remanding, or vacating the administrative judge's order. A final order rendered pursuant to this section is effective upon its entry, except as provided in § 4-5-320(b), unless a later effective date is stated in the order. A petition to stay the effective date of a final order may be filed under § 4-5-316. A petition for reconsideration of a final order may be filed pursuant to § 4-5-317. Judicial review of a final order may be sought by filing a petition for review in accordance with § 4-5-322. An order of an administrative judge that becomes final in the absence of an appeal to the board is deemed to be a decision of the board in that case for purposes of the standard of review by a court; provided,

however, that in other matters before the board, it may be considered but is not binding on the board.

SECTION 4. Tennessee Code Annotated, Section 68-212-113(b), is amended by deleting the subsection and substituting:

(b) The hearing before the board on any petition filed under subsection (a) must be conducted as a contested case and must be heard before an administrative judge sitting alone pursuant to § 4-5-301(a)(2), unless settled by the parties; provided, that for a petition filed under subdivision (a)(2)(B) the administrative judge shall hold the hearing in the department's environmental field office region where the proposed facility or site is located. The administrative judge to whom the case is assigned shall convene the parties for a scheduling conference within thirty (30) days of the date on which the petition is filed. The scheduling order issued by the administrative judge must establish a schedule that results in a hearing being completed within one hundred eighty (180) days of the scheduling conference unless the parties agree to a longer time or the administrative judge allows otherwise for good cause shown. An initial order must be issued within ninety (90) days of completion of the record of the hearing. The administrative judge's initial order, together with any earlier orders issued by the administrative judge, is final unless appealed to the board by a party pursuant to § 4-5-315 within fifteen (15) days after entry of the initial order. The board shall not review an initial order unless appealed by a party. Upon appeal to the board by a party, the board shall afford each party an opportunity to present briefs, and shall review the record and allow each party an opportunity to present oral argument. If appealed to the board, the review of the administrative judge's initial order must be limited to the record, but must be a de novo review with no presumption of correctness. The board shall render a final order at the conclusion of its review, in accordance with § 4-5-314, affirming, modifying,

remanding, or vacating the administrative judge's order. A final order rendered pursuant to this section is effective upon its entry, except as provided in § 4-5-320(b), unless a later effective date is stated in the order. A petition to stay the effective date of a final order may be filed under § 4-5-316. A petition for reconsideration of a final order may be filed pursuant to § 4-5-317. Judicial review of a final order may be sought by filing a petition for review in accordance with § 4-5-322. An order of an administrative judge that becomes final in the absence of an appeal to the board is deemed to be a decision of the board in that case for purposes of the standard of review by a court; provided, however, that in other matters before the board, it may be considered but is not binding on the board.

SECTION 5. Tennessee Code Annotated, Section 68-215-119(b), is amended by deleting the subsection and substituting:

(b) Hearings before the board must be conducted as a contested case and must be heard before an administrative judge sitting alone pursuant to § 4-5-301(a)(2), unless settled by the parties. The administrative judge to whom the case is assigned shall convene the parties for a scheduling conference within thirty (30) days of the date on which the petition is filed. The scheduling order issued by the administrative judge must establish a schedule that results in a hearing being completed within one hundred eighty (180) days of the scheduling conference unless the parties agree to a longer time or the administrative judge allows otherwise for good cause shown. An initial order must be issued within ninety (90) days of completion of the record of the hearing. The administrative judge's initial order, together with any earlier orders issued by the administrative judge, is final unless appealed to the board by a party pursuant to § 4-5-315 within fifteen (15) days after entry of the initial order. The board shall not review an initial order unless appealed by a party. Upon appeal to the board by a party, the board

shall afford each party an opportunity to present briefs, and shall review the record and allow each party an opportunity to present oral argument. If appealed to the board, the review of the administrative judge's initial order must be limited to the record, but must be a de novo review with no presumption of correctness. The board shall render a final order at the conclusion of its review, in accordance with § 4-5-314, affirming, modifying, remanding, or vacating the administrative judge's order. A final order rendered pursuant to this section is effective upon its entry, except as provided in § 4-5-320(b), unless a later effective date is stated in the order. A petition to stay the effective date of a final order may be filed under § 4-5-316. A petition for reconsideration of a final order may be filed pursuant to § 4-5-317. Judicial review of a final order may be sought by filing a petition for review in accordance with § 4-5-322. An order of an administrative judge that becomes final in the absence of an appeal to the board is deemed to be a decision of the board in that case for purposes of the standard of review by a court; provided, however, that in other matters before the board, it may be considered but is not binding on the board.

SECTION 6. Tennessee Code Annotated, Section 69-3-110(a), is amended by deleting the subsection and substituting:

(a) Any hearing brought before the board pursuant to § 69-3-105(i), § 69-3-109, § 69-3-115, § 69-3-116, or § 69-3-118 must be conducted as a contested case heard before an administrative judge sitting alone pursuant to § 4-5-301(a)(2), unless settled by the parties. The administrative judge to whom the case is assigned shall convene the parties for a scheduling conference within thirty (30) days of the date on which the petition is filed. The scheduling order issued by the administrative judge must establish a schedule that results in a hearing being completed within one hundred eighty (180) days of the scheduling conference unless the parties agree to a longer time or the

administrative judge allows otherwise for good cause shown. An initial order must be issued within ninety (90) days of completion of the record of the hearing. The administrative judge's initial order, together with any earlier orders issued by the administrative judge, is final unless appealed to the board by a party pursuant to § 4-5-315 within fifteen (15) days after entry of the initial order. The board shall not review an initial order unless appealed by a party. Upon appeal to the board by a party, the board shall afford each party an opportunity to present briefs, and shall review the record and allow each party an opportunity to present oral argument. If appealed to the board, the review of the administrative judge's initial order must be limited to the record, but must be a de novo review with no presumption of correctness. The board shall render a final order at the conclusion of its review, in accordance with § 4-5-314, affirming, modifying, remanding, or vacating the administrative judge's order. A final order rendered pursuant to this section is effective upon its entry, except as provided in § 4-5-320(b), unless a later effective date is stated in the order. A petition to stay the effective date of a final order may be filed under § 4-5-316. A petition for reconsideration of a final order may be filed pursuant to § 4-5-317. Judicial review of a final order may be sought by filing a petition for review in accordance with § 4-5-322. An order of an administrative judge that becomes final in the absence of an appeal to the board is deemed to be a decision of the board in that case for purposes of the standard of review by a court; provided, however, that in other matters before the board, it may be considered but is not binding on the board.

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.